IN THE CIRCUIT COURT '1' HELD IN ACCRA ON FRIDAY THE 18TH DAY OF JULY, 2025 BEFORE HER HONOUR CHRISTINA EYIAH-DONKOR CANN (MRS.), CIRCUIT COURT JUDGE

SUIT NO: C5/141/2024

JOYCE GORDON
HOUSE NO. A632/16
DANSOMAN, RAILWAYS
ACCRA

} **PETITIONER**

VRS

ALBERT BRONYA
HOUSE NO. 16, SONATA LK
GA-401-1599
MATAHEKO, ACCRA

} **RESPONDENT**

JUDGMENT

INTRODUCTION

The parties were married under the Marriage Ordinance on the 21st of August, 2015 at the Registrar General's Department, Accra. Whilst the petitioner is a trader, the respondent is a handyman at the Mount Olivet Methodist Academy at Dansoman. On the 18th December, 2023, the petitioner filed a Petition for divorce and averred that the marriage has broken down beyond reconciliation and prayed the court for the following reliefs:

"WHEREFORE THE Petitioner humbly prays for:

a. Dissolution of the ordinance marriage celebrated in fact between the parties as having broken down beyond reconciliation.

b. Any other orders the Court deem fit."

Since this is a matrimonial cause, it is the direct provisions of the Matrimonial Causes Act, 1971 (Act 367) which should apply.

Section 2 (2) of the Matrimonial Causes Act, 1971 (Act 367) provides that:

"On a petition for divorce it shall be the duty of the court to inquire, so far as is reasonable, into facts alleged by the petitioner and the respondent."

The facts relied on by the parties must therefore be pleaded and placed before the court; otherwise, the court cannot perform its statutory duties under the above section of this Act. The particulars set out in detail the facts relied on by the petitioner and the respondent to establish the allegation that the marriage has broken down beyond reconciliation.

The relevant particulars of the petitioner's Petition are as follows:

"17. That the Respondent has behaved in such a way that the Petitioner cannot reasonably be expected to live with him as Respondent has caused the Petitioner much anxiety, distress and embarrassment.

PARTICULARS OF UNREASONABLE BEHAVIOUR

i. That the Petitioner says that about 3 years into the marriage, the Respondent at the least provocation always insulted the Petitioner, that she was a prostitute, an adulterous, foolish and a stupid woman, but these insults caused the Petitioner to feel humiliated as she got pregnant by another man with the consent of the Respondent.

ii. That the Petitioner avers that the Respondent after undergoing all the medical and herbal treatments and taking his medications, Respondent did not recover as he assured the Petitioner earlier before their marriage and this has caused the Petitioner a lot of disappointment and sorrow as her hope of having another child was dashed.

iii. That the Petitioner asserts that, a lot of people, both family and friends kept mounting pressure on her to give birth as their first born was growing and this pressure caused

Petitioner great anguish as the Respondent did not seem to be concerned about the request for another child.

iv. *That Petitioner states that she kept asking the Respondent about how they were going to give birth to another child and somewhere in the year 2022, the Respondent suggested that she should get pregnant with another man.*

v. *That the Petitioner says that the suggestion disturbed her greatly as the process of going to have sex with another man other than her husband was mentally torturing however after the Respondent reiterated it for some time, the Petitioner obliged.*

vi. *That Petitioner claims that in the month of October, 2022, the Respondent came home one evening and met the Petitioner lying on the floor in their matrimonial bedroom with her eyes closed and Respondent assumed that Petitioner was asleep.*

vii. *That the Petitioner avers that as Respondent entered the room, he stood by her and insulted her that she was a prostitute, an adulterous, foolish and a stupid woman thereafter, Respondent left to the bathroom however when he returned from the bathroom, Respondent again stood by Petitioner and insulted her again as a prostitute, an adulterous, foolish and stupid woman.*

viii. *That the Petitioner avers that the insults so infuriated her that she sat up and asked Respondent why he was using such piercing words on her which makes her feel humiliated even though she had not provoked her, but the Respondent would not answer.*

ix. *That thereafter, the parties were not on talking terms from October, 2022 until January, 2023 when the Respondent came to apologize to the Petitioner who relocated to her parents' home and has since not returned."*

14. *That all attempts by families of the parties at reconciliation have proved futile as Petitioner cannot continue to withstand such humiliation from the Respondent."*

The respondent filed his Answer to the petitioner's Petition on the 7th March, 2024 with leave of the court and cross-petitioned for the following reliefs:

"a. An Order that the marriage celebrated between the parties on the 21st day of August, 2015 be dissolved.

b. Reasonable access to the children as Respondent continues to sponsor their education.

c. Any other Order that the Court deems fit."

The petitioner filed a Reply to the respondent's Answer and Cross-Petition on the 25th April, 2024.

SUMMARY OF THE EVIDENCE BY THE PETITIONER AND THE RESPONDENT

The petitioner testified under oath but did not call any witness.

The respondent also testified under oath but did not call any witness

In several decided cases, the superior courts have held that there are situations where the testimony of a single witness will suffice to prove a case.

In the case of **Kru vrs Saoud Bros & Sons (1975) 1 GLR 46**, the Court of Appeal held:

> *"Judicial decisions depend on the intelligence and credit and not the multiplicity of witnesses produced at the trial."*

Also, in the case of **Takoradi Flour Mills vrs Samir Faris (2005-2006) SCGLR,** the Supreme Court held affirming the position of the law that:

> *"(a) A tribunal of facts can decide an issue on the evidence of one party. A bare assertion on oath by a single witness might in the proper circumstance of a case be enough to form the basis of a judicial interpretation. The essential thing is that the witness is credible by the standard set in section 80 (2) of the Evidence Act, 1975."*

Again, in the case of **Ghana Ports and Harbours Authority vrs Captain Zavi & Nova Complex Ltd (2007-2008) SCGLR 806** the Supreme Court held thus:

> *"It is true that witnesses are weighed but not counted and that a whole host of witnesses are not needed to prove a particular point."*

The petitioner tendered in evidence the marriage certificate as Exhibit "A".

THE PETITIONER'S CASE

It is the evidence of the petitioner that she got married to the respondent on the 21st of August, 2015 at the Registrar General's Department, Accra. After the marriage, they cohabited at Dansoman in Accra. They have one (1) issue of the marriage namely: Vicentia Ewurasi Kwartemaa Bronya- 7 years of age. It is further the evidence of the petitioner that six months before they got married, she was going through the respondent's documents and she saw a medical report to the effect that the respondent cannot impregnate a woman. According to the petitioner, the respondent explained to him that he was on medication to correct the medical problem so she should bear with him until he is done with the medication and based on the explanation as given to her by the respondent, she forgave him and remained in the courtship relationship with the respondent. It is further the evidence of the petitioner that they mutually agreed that she should enter into a relationship with a man and upon realizing that she is pregnant, delete the man's number and cut off every communication with the man. So she entered into a relationship with another man as earlier agreed with the respondent. The petitioner continued that four (4) months after she got pregnant, she and the respondent got married and the respondent tool care of the pregnancy until she gave birth and even named the child and thereafter assumed responsibility as the father of the child. It is also the evidence of the petitioner that three (3) months into the marriage, the respondent at the least provocation always insulted her that she is a prostitute, an adulterous, foolish and stupid woman and these insults caused

her to feel humiliated as she got pregnant by another man with the consent of the respondent.

The petitioner continued that the respondent after undergoing all the medical and herbal treatments and taking his medications, did not recover as he assured her earlier before their marriage and this has caused her a lot of disappointment and sorrow as her hope of having another child was dashed. A lot of people, both family and friends kept mounting pressure on her to give birth as their first born was growing and this pressure caused her great anguish as the respondent did not seem to be concerned about the request for another child. She kept asking the respondent about how they were going to give birth to another child and somewhere in the year 2022, the respondent suggested that she should get pregnant with another man. According to the petitioner, the respondent's suggestion disturbed her greatly as the process of going to have sex with another man other than her husband was mentally torturing. However, after the respondent reiterated it for some time, she obliged. It is the case of the petitioner that in the month of October, 2022, the respondent came home one evening and met her lying on the floor in their matrimonial bedroom with her eyes closed and the respondent assumed that she was asleep and as the respondent entered the room, he stood by her and insulted her that she was a prostitute, an adulterous, foolish and a stupid woman. Thereafter, the respondent left to the bathroom however, when he returned from the bathroom, he again stood by her and insulted her again as a prostitute, an adulterous, foolish and stupid woman. These insults so infuriated her that she sat up and asked the respondent why he was using such piercing words on her which makes her feel humiliated even though she had not provoked her, but the respondent would not answer. Thereafter, they were not on talking terms from October, 2022 until January, 2023 when the respondent came to apologize to her, relocated to his parents' home and has since not returned.

As far as the petitioner is concerned, the marriage had broken down and she would never be reconciled with the respondent. She would not go back to the respondent and no more diligent efforts at reconciliation would succeed. She also prayed the court to dissolve the marriage.

THE RESPONDENT'S CASE

The respondent did not file any witness statement, he gave a *viva voce* evidence. It is his evidence that he got married to the petitioner customarily and they proceeded to register their marriage in August, 2015. According to the respondent, they have one (1) issue in the marriage called Vicentia Ewurasi Kwartemaa Bronya, nine (9) years old. It is further the evidence of the respondent that they tried to settle their differences in the marriage at home with the help of their family members but the petitioner insisted that she was no longer interested in the marriage and that it should be dissolved. He continued that for the past two (2) years, they have not lived together as husband and wife and if the petitioner does not want to marry him again, he cannot force her to marry him and he therefore agrees that the marriage should be dissolved. He stated further that he can maintain the only issue of the marriage with four hundred and fifty Ghana cedis (GH¢450.00) a month, pay her school fees and all other expenses associated with her education. It is further the evidence of the respondent that custody of the only issue of the marriage should also be granted to the petitioner with reasonable access to him.

FINDINGS OF PRIMARY FACTS

From the evidence on the record, the following facts are not in dispute:

1. That the parties were married under the ordinance on the 21st August, 2015 at the Registrar General's Department, Accra.
2. That the parties have one (1) issue in the marriage.

ISSUES FOR DETERMINATION

The **main issues** for determination are as follows:

1. *Whether or not the marriage contracted between Joyce Gordon, the petitioner herein and Albert Bronya the respondent herein on the 21st August, 2015 at the Registrar General's Department, Accra has broken down beyond reconciliation?*
2. *Whether custody of the only issue of the marriage, Vicentia Ewurasi Kwartemaa Bronya can be granted to the petitioner with reasonable access to the respondent?*
3. *Whether or not the respondent can be compelled to maintain the only issue of the marriage every month, pay her school fees and all other incidental expenses associated with her education?*

ANALYSIS OF THE RELEVANT SECTIONS OF THE MATRIMONIAL CAUSES ACT, 1971 (ACT 367)

Before I deal with the issues, I now wish to set out the relevant sections of the Matrimonial Causes Act, 1971 (Act 367) namely sections 1 (2), 2 (1), and 2 (3).

The only ground upon which a marriage may be dissolved is where the petitioner proves that the marriage has broken down beyond reconciliation.

Section 1 (2) of the Matrimonial Causes Act, 1971 (Act 367) provides thus:

> *"The sole ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation."*

The grounds upon which a marriage would be said to have broken down beyond reconciliation are six (6) and the proof of one or more of them to the satisfaction of the Court may be a valid ground to the dissolution of the marriage. The six grounds are provided in section 2 (1) of the Matrimonial Causes Act, 1971 (Act 367). They are as follows:

> *"2 (1) For the purpose of showing that the marriage has broken down beyond reconciliation the petitioner shall satisfy the court of one of the following facts:*

a. *That the respondent has committed adultery and by reason of the adultery the petitioner finds it intolerable to live with the respondent;*
b. *That the respondent has behaved in a way that the petitioner cannot reasonably be expected to live with the respondent;*
c. *That the respondent has deserted the petitioner for a continuous period of at least two years immediately preceding the presentation of the petition.*
d. *That the parties to the marriage have not lived as husband and wife for a period of at least two years immediately preceding the presentation of the petition and the respondent consents to the grant of a decree of divorce, provided that the consent shall not be unreasonably withheld, the Court may grant a petition for divorce under this paragraph despite the refusal;*
e. *That the parties to the marriage have not lived as husband and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or*
f. *That the parties to the marriage have, after diligent effort, been unable to reconcile their differences.*

Under section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367):

"Although the Court finds the existence of one or more of the facts specified in subsection (1), the Court shall not grant a petition for divorce unless it is satisfied, on all the evidence, that the marriage has broken down beyond reconciliation."

BURDEN ON THE PETITIONER AND THE RESPONDENT

It is a general principle of law that he who asserts must prove. This general principle has been given both statutory expressions at section, 10 (1) and (4) of the Evidence Act, 1975 (NRCD 323), and judicial pronouncements.

In the case of **Ababio v. Akwasi 111 (1995) 2 GBR 774**, the Court held that:

"The general principle of law is that it is the duty of the plaintiff to prove his case, i.e. he must prove what he alleges. In other words, it is the party who raises in his pleadings an issue essential to the success of the case who assumes the burden of proving it. The burden only shifts to the defence to lead sufficient evidence to tip the scales in his favour when on a particular issue the plaintiff leads some evidence to prove his claim. If the defendant succeeds in doing this he wins: if not he loses on that particular issue."

See also: **Bisi v Tabiri [1987-1988] I GLR 360.**

Ackah v. Pergah Transport Limited & Others [2010] SCGLR 732.

In a petition for divorce, the burden that is cast on a petitioner is to lead sufficient evidence to enable a finding of those facts in issue to be made in her favour as required by sections 10 and 14 of the Evidence Act, 1975 (NRCD 323).

See: **Dzaisu v Ghana Breweries Limited [2009] 6 GMJ 111 S.C.**

Sections 11 (4) and 12 (1) of the Evidence Act, 1975 (NRCD 323) provides that the standard burden of proof in all civil matters is proof by the preponderance of probabilities and there is no exception to it except where the issue to be resolved in the civil suit borders on criminality such as fraud and forgery.

The Supreme Court also in the case of **Adwubeng v Domfeh [1996-97] SCGLR 660** unambiguously resolved the question of standard burden of proof.

In the case of **African Mining Services v Larbi [2010-2012] GLR 579**, the Court held that the burden of persuasion in civil matters requires the person who has the evidential burden to discharge, to produce sufficient evidence such that a reasonable mind, such as this Court, will come to the conclusion that the existence of the fact is more probable.

It is therefore the petitioner's duty as required by law to produce the evidence of the facts in issue such that a reasonable mind, such as this Court, will come to the conclusion that from the existence of the facts, it is more probable that the marriage

has broken down beyond reconciliation and that duty must be satisfactorily discharged.

In this case, since the respondent also cross-petitioned, he is equally required to prove his case by the preponderance of probabilities, having regard to sections 10 and 14 of the Evidence Act, 1975 (Act 323).

Furthermore, the ground upon which the petitioner seeks the dissolution of the marriage contracted between herself and the respondent is unreasonable behaviour by the respondent and unsuccessful attempts at reconciliation. The respondent also alleged in his cross-petition adultery and unreasonable behaviour by the petitioner and unsuccessful attempts at reconciliation as his basis for seeking a dissolution of the marriage. Therefore, the onus is on each one of them to lead cogent and credible evidence to prove their respective allegations.

ANALYSIS OF THE EVIDENCE ON RECORD

ISSUE ONE

Whether or not the marriage contracted between Joyce Gordon, the petitioner herein and Albert Bronya, the respondent herein on the 21st August, 2015 at the Registrar General's Department, Accra has broken down beyond reconciliation?

UNREASONABLE BEHAVIOUR

A. UNREASONABLE BEHAVIOUR BY THE RESPONDENT

The petitioner in paragraph 17 of her Petition averred that the respondent has behaved unreasonably towards her in a way that she cannot reasonably be expected to live with him by:

i. insulting her at the least provocation that she is a prostitute, an adulterous, foolish and a stupid woman, thereby making her feel humiliated as she got pregnant by another man with the consent of the respondent,

ii. causing her a lot of disappointment and sorrow as her hope of having another child was dashed as the respondent after undergoing all the medical and herbal treatments and taking his medications, did not recover as he assured her earlier before their marriage;

iii. being unconcerned about the request for another child from a lot of people, both family and friends as their first born was growing, and

iv. suggesting that she should get pregnant with another man for the second time.

The respondent failed to cross-examine the petitioner on the various allegations of unreasonable behaviour levelled against him and his failure to cross-examine the petitioner on the various allegations of unreasonable behaviour levelled against him suggests that the testimony or the assertion of the petitioner was true or has been admitted.

And the law is that when a party has given evidence of a material fact and he was not cross-examined upon that, he need not call further evidence of that fact and the opponent who failed to cross-examine him will be deemed to have acknowledged, *sub silentio*, that averment by the failure to cross- examine as enunciated in the following case:

Quagraine vrs Adams [1981] GLR 599.

Akyere-Djamson vrs Duagbor [1989-90] 1 GLR 223.

SC, Fori vrs Ayirebi (1966) GLR 627 SC.

Western Hardwood Ent. Ltd vrs W/A Ent. Ltd. (1998-1999) SCGLR 10.

From the totality of the evidence on record, this court therefore finds as a fact that the respondent indeed has behaved unreasonably towards the petitioner in such a way that she cannot reasonably continue to live with him as husband and wife by insulting her at the least provocation that she was a prostitute, an adulterous,

foolish and a stupid woman, thereby making her feel humiliated as she got pregnant by another man with the consent of the respondent, causing her a lot of disappointment and sorrow as her hope of having another child was dashed as the respondent after undergoing all the medical and herbal treatments and taking his medications, did not recover as he assured her earlier before their marriage, being unconcerned about the request for another child from a lot of people, both family and friends as their first born was growing and suggesting that she should get pregnant with another man for the second time.

I must also confess that no woman, no matter how large her heart can pull along with a husband who insults her at the least provocation that she was a prostitute, an adulterous, foolish and a stupid woman, after mutually agreeing mutually agreeing with her to enter into a relationship with another man and upon realizing that she is pregnant, delete the said man's number and cut off every communication with the man which she did because of his inability to give birth, being unconcerned about the request for another child from a lot of people, both family and friends as their first born was growing and suggesting that she should get pregnant with another man for the second time. The conduct of the respondent in the view of this court falls very far short of that of a reasonable man.

From the totality of the evidence on record, this court finds as a fact that the respondent has behaved in such a way that the petitioner cannot reasonably be expected to continue to live together with him.

The petitioner proved her case by the preponderance of probabilities that the respondent has behaved unreasonably towards her in a way that she cannot reasonably be expected to live with him as provided under section 2 (1) (b) of the Matrimonial Causes Act, 1971 (Act 367) and this court holds same.

B. UNREASONABLE BEHAVIOUR BY THE PETITIONER

The respondent in paragraph 17 of his Answer and Cross-Petition averred that it is the petitioner who has behaved unreasonably towards him in a way that he cannot reasonably be expected to live with her which the petitioner denied. However, the respondent failed to particularize the said unreasonable behaviour.

Furthermore, the respondent did not lead any evidence on his allegation of unreasonable behaviour against the petitioner.

In the case of **Zabrama v Segbedzi (1991) 2 GLR 221,** the Court of Appeal restated the time honoured principle in **Majolagbe v Larbi (1959) GLR 190** as follows:

"A person who makes an averment or assertion which is denied by his opponent has the burden to establish that his averment or assertion is true. And he does not discharge this burden unless he leads admissible and credible evidence from which that fact or facts he asserts can properly and safely be inferred."

Takoradi Flour Mills vrs Samir Faris (2005-2006) SCGLR 883.
Courage Adonoo vrs Fan Milk Ltd (2006) 6 MLRG 211 CA.
T. K. Serbeh &Co Ltd vrs Mensah (2007) MLRG SC 1.
Delmas America Africa Line Incorporation vrs Kisko Products Ghana Ltd (2007) 11 MLRG 141 SC.

The respondent thus failed to prove to the satisfaction of this court that the petitioner has behaved in a way that he cannot reasonably be expected to live with her.

The respondent's charge of unreasonable behaviour is therefore a mere allegation without a scintilla of evidence against his wife. It was as if respondent was shopping for any available ground in an attempt to convince the court that his wife has behaved unreasonably towards him so that the marriage could be dissolved. No doubt he failed to lead any evidence to that effect.

THE PARTIES TO THE MARRIAGE HAVE, AFTER DILIGENT EFFORT, BEEN UNABLE TO RECONCILE THEIR DIFFERENCES

The petitioner stated in paragraph 14 of her Petition averred that all attempts to have a reasonable and amicable settlement of the issues bedeviling the marriage have failed spectacularly and she further lead evidence to that fact.

The respondent also stated in paragraphs 32 of his Answer and Cross-Petition that all diligent efforts by their respective family members to reconcile them to remain in the marriage have proved futile and he further lead evidence to that fact.

From the totality of the evidence on record, this court finds as a fact that the parties after diligent efforts have been unable to reconcile their differences.

The court is satisfied that the parties proved their case by the preponderance of probabilities that they, after diligent efforts have been unable to reconcile their differences as provided under section 2 (1) (f) of the Matrimonial Causes Act, 1971 (Act 367) and this court holds same.

The next question to consider is the requirement of section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367) whether the marriage between the petitioner and the respondent has broken down beyond reconciliation.

On a proper construction of this sub-section of the act, the court can still refuse to grant a decree even when one or more of the facts set in section 2 (1) of the Matrimonial Causes Act, 1971 (Act 367) have been established. It is therefore incumbent upon a court hearing a divorce petition to carefully consider all the evidence before it; for a mere assertion by one party that the marriage has broken down will not be enough.

See: **Dictum of Bagnall J in the case of Ash v. Ash [1972] 1 ALL ER 582 at page 586.**

From the evidence on record, there is no indication that the parties are prepared or willing to cooperate once again to find a solution to their differences. The parties from October, 2022 to date have not lived together as husband and wife. The court finds as a fact that the marriage has broken down and there is no hope or reconciliation at this stage as the parties themselves have told this court and it is better for this court to dissolve this marriage so that the parties can go their separate ways and be put out of their miseries.

To insist that the petitioner and the respondent continue to live together as man and wife would be turning a contract of marriage into one of slavery regardless of the psychological and emotional trauma on the parties or one of them and allowing this marriage to strive on hopelessly, helplessly, and lack of trust. This is because matrimonial causes are unique because they involve two persons who are physically, emotionally and spiritually involved with each other unlike other causes of action like land cases, contract, constitutional, chieftaincy etc. which do not involve intimacy between two people. No doubt the Bible declares the unique relationship as the two becoming one flesh.

I cannot but agree with *Osei-Hwere* J (*as he then was*) in the case of **Donkor v. Donkor (1982-83) GLR 1156 at page 1158** as follows*:*

"The Matrimonial Causes Act (1971) Act 367 does not permit spouses married under the Ordinance to come to pray for dissolution of a marriage just for the asking. Where the court is satisfied from the conduct of the parties that the marriage has in truth and in fact broken down beyond reconciliation it cannot pretend and insist that they continue as man and wife. To do so would be turning a contract of marriage into one of slavery regardless of the psychological effect on the parties or one of them."

Despite the respondent's failure to prove his wild allegation of unreasonable behaviour against his wife, there are several other compelling grounds which prove that the marriage between the parties has gone beyond retrieval. I am satisfied that regarding the burden of persuasion, the parties produced sufficient

evidence to persuade me to come to the conclusion per the existence of the fact that the marriage had broken down beyond reconciliation.

The court finds and holds from the totality of the evidence on record that, the marriage contracted between Joyce Gordon, the petitioner herein and Albert Bronya the respondent herein on the 21st August, 2015 at the Registrar General's Department, Accra has broken down beyond reconciliation and the justifications are that from the evidence:

i. the respondent has behaved in such a way that the petitioner cannot reasonably be expected to continue to live with him and
ii. the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

Thus, a *prima facie* case has been made by the parties that warrants the dissolution of the marriage. The requirements of section 1 (2) of the Matrimonial Causes Act, 1971 (Act 367) has thus been met by the petitioner and the respondent.

I hereby declare the marriage contracted between Joyce Gordon, the petitioner herein and Albert Bronya, the respondent herein on the 21st August, 2015 at the Registrar General's Department, Accra dissolved.

ISSUE TWO

Whether custody of the only issue of the marriage, Vicentia Ewurasi Kwartemaa Bronya can be granted to the petitioner with reasonable access to the respondent?

The respondent prayed the court to grant custody of the only issue of the marriage to the petitioner with reasonable access to him. The petitioner in her Reply to the respondent's Answer filed on the 24th April, 2024 stated at paragraph 7 that the petitioner is not entitled to have access to the children as they are not his biological children.

From the totality of the evidence on the record, it is vividly clear that the respondent is not the biological father of the only issue of the marriage namely:

Vicentia Ewurasi Kwartemaa Bronya. However, per the evidence on record, the parties mutually agreed due to the respondent's inability to impregnate a woman that the petitioner should find a man to impregnate her and thereafter cut off every form of communication with the said man which the petitioner did.

Furthermore, four (months) after the petitioner got pregnant, the respondent married her and took care of her and the pregnancy until she gave birth and also named the child and thereafter assumed the responsibility as the father of the child.

It is clear from the evidence on record that the respondent has been caring for the child since she was born. The child also knows the respondent as the father and they do have a father-daughter relationship. The parties must put their differences aside in the best interest of the child and not visit their sins on the innocent child. The role of the father in the upbringing of a child is crucial. He affects the child in unique ways. A child has the right to a relationship with both her parents, thus access of the child to the respondent cannot totally be denied but it shall be regulated as per the order below.

Considering the totality of the evidence on record, and the best interest of the child to stay with the petitioner, her mother since she is young and she is also in a better position to take care of her, custody of the only child of the marriage, Vicentia Ewurasi Kwartemaa Bronya is accordingly granted to the petitioner with reasonable access to the respondent.

ISSUE THREE

Whether or not the respondent can be compelled to maintain the only issue of the marriage every month, pay her school fees and all other incidental expenses associated with her education?

According to the respondent, he can maintain the only issue of the marriage with four hundred and fifty Ghana cedis (GH¢450.00) a month, pay her school fees and all other expenses associated with her education.

The parties are duty-bound to provide good guidance, care, assistance, and maintenance for the child, and assurance of the child's survival and development as stipulated under section 6 (3) (6) of Act 560. The petitioner as the father of the child is under a duty to ensure that the welfare of the child is not deprived so far as the existence of the child has been brought to his notice.

In the case of **Adjei & Anor v Rupley [1956] 1 WALR 62**, it was held that: "(ii) *By native custom throughout the Gold Coast a father is primarily responsible for the maintenance of his children."* However, the welfare and upbringing of the child cannot be put solely on the petitioner. The respondent ought to contribute towards the upbringing of the child in issue. Accordingly:

i. The respondent is ordered to maintain the only issue of the marriage with Five Hundred Ghana cedis (GH¢500.00) every month effective July, 2025.
ii. The petitioner shall pay the school fees, and medical bills of the only child of the marriage.

The petitioner's petition succeeds.

The respondent's cross-petition also succeeds.

CONCLUSION

1. The marriage solemnized between Joyce Gordon, the petitioner herein and Albert Bronya the respondent herein on the 21st August, 2015 at the Registrar General's Department, Accra is dissolved on the grounds that it has broken down beyond reconciliation.

2. Custody of the only child of the marriage, Vicentia Ewurasi Kwartemaa Bronya is accordingly granted to the petitioner with reasonable access to the respondent.
3. The respondent is ordered to maintain the only issue of the marriage with Five Hundred Ghana cedis (GH¢500.00) every month effective July, 2025.
4. The petitioner shall pay the school fees and medical bills of the only child of the marriage.
5. Parties to bear their respective costs of litigation.

COUNSEL

JEFFREY ABBEY ADAMSON FOR THE PETITIONER ABSENT

THE RESPONDENT IS SELF REPRESENTED

PARTIES PRESENT

(SGD)

H/H CHRISTINA EYIAH-DONKOR CANN (MRS.)

(CIRCUIT COURT JUDGE)